



Bill Number: H.B. 2745

Hoffman Floor Amendment

Reference to: GOVERNMENT Committee amendment

Amendment drafted by: Anna Nguyen

FLOOR AMENDMENT EXPLANATION

- Specifies that a committee chairperson may issue an order of contempt for neglecting or refusing to obey a legislative subpoena.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2745
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{Orange lowercase strikeout in double curly brackets}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 41-1153, Arizona Revised Statutes, is amended to
3 read:

4 41-1153. Disobedience of subpoena as legislative contempt

5 A. If a witness neglects or refuses to obey a legislative subpoena,
6 or, appearing, neglects or refuses to testify, ~~the senate or the house~~
7 ~~may, by resolution entered in the journal, commit him~~ UNLESS ANOTHER
8 PROCEDURE IS PROVIDED BY THE RULES OF EITHER HOUSE OF THE LEGISLATURE, THE
9 WITNESS MAY BE COMMITTED for contempt BY EITHER OF THE FOLLOWING:

10 1. AFTER THE WITNESS IS GIVEN NOTICE AND AN OPPORTUNITY FOR A
11 HEARING TO PRESENT EVIDENCE, AT THE DISCRETION OF THE CHAIRPERSON, TO SHOW
12 CAUSE AS TO WHY THE WITNESS IS NOT IN CONTEMPT, AN ORDER OF CONTEMPT BY
13 ANY COMMITTEE {{CHAIRPERSON}} OR THE PRESIDENT OF THE SENATE OR SPEAKER OF
14 THE HOUSE OF REPRESENTATIVES THAT FINDS THAT THE WITNESS HAD KNOWLEDGE OF
15 THE SUBPOENA, HAD THE ABILITY TO COMPLY WITH THE SUBPOENA AND FAILED TO
16 COMPLY WITH THE SUBPOENA.

1 2. A RESOLUTION ENTERED IN THE JOURNAL BY THE SENATE OR THE HOUSE
2 OF REPRESENTATIVES.

3 B. A witness ~~neglecting~~ WHO NEGLECTS or ~~refusing~~ REFUSES to attend
4 in obedience to a subpoena may be arrested by the sergeant-at-arms [OR A
5 COUNTY SHERIFF] and brought before the senate or house ~~upon~~ OF
6 REPRESENTATIVES ON authority of EITHER OF THE FOLLOWING:

7 1. A copy of the ORDER OF CONTEMPT THAT IS SIGNED BY THE
8 CHAIRPERSON OR THE PRESIDENT OF THE SENATE OR THE SPEAKER OF THE HOUSE OF
9 REPRESENTATIVES AND THAT IS COUNTERSIGNED BY THE SECRETARY OF THE SENATE
10 OR CHIEF CLERK OF THE HOUSE OF REPRESENTATIVES.

11 2. A COPY OF THE resolution THAT IS signed by the president OF THE
12 SENATE or speaker OF THE HOUSE OF REPRESENTATIVES, ~~—~~ and THAT IS
13 countersigned by the secretary OF THE SENATE or chief clerk OF THE HOUSE
14 OF REPRESENTATIVES.

15 Enroll and engross to conform

16 Amend title to conform

JAKE HOFFMAN

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